

Syllabus

tion whether a plaintiff states a claim for relief typically “goes to the merits” of a case, however, not to the dispute’s justiciability, *Steel Co. v. Citizens for Better Environment*, 523 U.S. 83, 92, and conflation of the two concepts can cause confusion. This happened with *Tennessee Electric’s* Tenth Amendment discussion. The statement on which the Third Circuit relied here, see 306 U.S., at 144, should be read to refer to the absence of a cause of action for injury caused by economic competition. To the extent the statement might instead be read to suggest a private party does not have standing to raise a Tenth Amendment issue, it is inconsistent with this Court’s later precedents and should be deemed neither controlling nor instructive on the issue of standing as that term is now defined and applied. Pp. 217–220.

(b) *Amicus*, appointed to defend the judgment, contends that for Bond to argue the National Government has interfered with state sovereignty in violation of the Tenth Amendment is to assert only a State’s legal rights and interests. But in arguing that the Government has acted in excess of the authority that federalism defines, Bond seeks to vindicate her own constitutional interests. Pp. 220–226.

(1) Federalism has more than one dynamic. In allocating powers between the States and National Government, federalism “‘secures to citizens the liberties that derive from the diffusion of sovereign power,’” *New York v. United States*, 505 U.S. 144, 181. It enables States to enact positive law in response to the initiative of those who seek a voice in shaping the destiny of their own times, and it protects the liberty of all persons within a State by ensuring that law enacted in excess of delegated governmental power cannot direct or control their actions. See *Gregory v. Ashcroft*, 501 U.S. 452, 458. Federalism’s limitations are not therefore a matter of rights belonging only to the States. In a proper case, a litigant may challenge a law as enacted in contravention of federalism, just as injured individuals may challenge actions that transgress, *e.g.*, separation-of-powers limitations, see, *e.g.*, *INS v. Chadha*, 462 U.S. 919. The claim need not depend on the vicarious assertion of a State’s constitutional interests, even if those interests are also implicated. Pp. 220–224.

(2) The Government errs in contending that Bond should be permitted to assert only that Congress could not enact the challenged statute under its enumerated powers but that standing should be denied if she argues that the statute interferes with state sovereignty. Here, Bond asserts that the public policy of Pennsylvania, enacted in its capacity as sovereign, has been displaced by that of the National Government. The law to which she is subject, the prosecution she seeks to counter, and the punishment she must face might not have come about had the